

BEFORE THE FEDERAL MARITIME COMMISSION

COOL LIVING LLC,

Complainant,

v.

ALPI U.S.A., INC. and

ALPI AIR & SEA A/S,

Respondents.

Docket No. 25-28

**COMPLAINANT’S MOTION TO QUASH NOTICES OF DEPOSITION OR, IN THE
ALTERNATIVE, FOR A PROTECTIVE ORDER**

Complainant Cool Living LLC (“Cool Living” or “Complainant”), through its representative Tony Hopkins, respectfully submits this Motion to Quash, or in the alternative for a Protective Order (“Motion”) in response to Respondents ALPI U.S.A., Inc. and ALPI Air & Sea A/S’s (“Respondents” or “ALPI”) untimely Notices of Deposition of Tony Hopkins and Anna Farkas dated Friday June 5, 2026 (the “Notices”), each calling for a seven-hour deposition by remote videoconference on the following Thursday June 11, 2026 (Farkas) and Friday June 12, 2026 (Hopkins), and each failing to identify the matters for examination or the capacity in which the witness is expected to testify. Respondents have intentionally left Cool Living with an inadequate amount of time to investigate the proper deponents, review appropriate documents, prepare any deponent adequately, and provide testimony before the June 13, 2026 close of all discovery. There is no excuse for Respondents waiting until Friday June 5, 2026, mere five business days before the end of all discovery and one business day after Complainant’s counsel of record filed its Motion to Withdraw, to serve these Notices. The timing is pure gamesmanship, manufactured to prejudice, and cause undue burden and expense to Cool Living and the foreign individuals during a known period of representation transition. There must be consequences for this scattershot practice of law. Here, Cool Living submits the appropriate consequence is quashing

the deposition Notices without ability to re-notice or in the alternative order any testimony required from these witnesses be provided by declaration or affidavit submitted with the parties' briefs and appendices in lieu of oral deposition. In support of this Motion, Cool Living states the following:

BACKGROUND

A. Procedural Posture

The Verified Complaint was filed December 4, 2025 (Dkt. 1). Respondents' Verified Answer was filed January 14, 2026 (Dkt. 12). Pursuant to the Scheduling Orders dated January 30, 2026 and March 2, 2026, the close of discovery is set for June 13, 2026 (Dkts. 14 and 16). Briefing is scheduled to begin July 13, 2026. The Presiding Officer's December 9, 2025 Initial Order at Item 10 confirms that "requests to extend established deadlines will be reviewed for good cause even if parties agree to the extension," and at Item 41 expects the parties to "narrow the issues and to shorten the proceeding by stipulations." On June 4, 2026, Complainant's counsel of record, Holland & Knight LLP ("H&K"), filed a Motion to Withdraw as Counsel (Dkt. 20). One business day later, on Friday, June 5, 2026 at 12:16 PM Eastern, Respondents transmitted the Notices of Deposition by email to H&K (Ex. A). H&K forwarded the Notices to Complainant on the evening of Saturday, June 6, 2026 (Ex. B). Cool Living's representatives first viewed the Notices on Monday morning, June 8, 2026, due to the intervening weekend and ongoing international travel. The effective business-day notice to Cool Living was two business days for the Farkas deposition and three for the Hopkins deposition. On June 8, 2026, Cool Living's representative Tony Hopkins filed a Notice of Appearance pursuant to 46 C.F.R. §§ 502.21(a), 502.23(a), and 502.27(e). On the same date, the Presiding Officer issued the Order on Motion to Withdraw (Ex. D) granting in part and denying in part H&K's motion. The Order requires H&K to remain counsel of record through June 13, 2026 and to represent Cool Living at any deposition conducted on or before that date, and confirms that "substitution of new counsel is not automatic grounds for further extension absent a showing of good cause."

B. The Notices

The Notices identify each deponent as "an officer, director, owner, and/or managing representative of Cool Living LLC." (Ex. E.) That language tracks the organizational deposition authority of 46 C.F.R. § 502.143(b)(6). The Notices, however, list zero matters for examination. They do not identify topics, subjects, or the capacity (individual or organizational) in which the

witnesses are expected to appear and testify. The Notices specify the place as “By remote videoconference, subject to agreement of the parties or order of the Presiding Officer under 46 C.F.R. § 502.143(b)(4)” (Ex. E), conditioning the format on prerequisites that have not been satisfied. The deponents are foreign nationals residing outside the United States, in different foreign countries: Ms. Farkas resides in Spain and Mr. Hopkins resides in Finland. The Notices do not address the requirements of § 502.142(b) for depositions of persons in a foreign country.

C. Meet and Confer Certification under 46 C.F.R. § 502.71(a)

On Monday, June 8, 2026, Cool Living transmitted a meet and confer email to Respondents’ counsel Michael P. Kohler and Daniel E.L. Bang, with copies to H&K. The email (Ex. G) identified the anticipated Motion, set forth Cool Living’s position that the Notices are procedurally defective, and asked Respondents to confirm whether they would (a) withdraw the Notices and agree not to re-notice depositions of either witness in this proceeding, or (b) oppose the anticipated Motion. By email of the same date (Ex. G), Respondents declined to withdraw the Notices and expressly reserved “the right to oppose any motion to quash or for a protective order.” Respondents proposed alternative dates of June 12, 2026 (Farkas) and June 13, 2026 (Hopkins) and stated the depositions “should proceed over two days within the discovery period, as they cannot reasonably be completed in a single day.” Cool Living responded by email transmitted late June 9 / early June 10, 2026 (Ex. H), maintaining its objections and requesting that Respondents state whether they seek organizational or individual testimony. Cool Living has in good faith conferred with Respondents, but the parties were unable to reach agreement. The Motion is opposed.

STANDARD OF REVIEW

Federal Maritime Commission Rule 132 provides, in pertinent part, that “the person to whom the subpoena is directed may, by motion with notice to the party requesting the subpoena, petition the presiding officer to quash or modify the subpoena.” 46 C.F.R. § 502.132(a). The Commission has evaluated motions to quash by considering factors such as propriety, relevance, privilege, and undue burden. *See Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC – Possible Violations of 46 U.S.C. § 41102(C) (Docket No. 21-09), 2022 WL 458579 (F.M.C. Feb. 9, 2022).*

The Commission’s rules also permit the presiding officer to issue a protective order when such order is necessary to “protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense.” 46 C.F.R. § 502.141(j). The presiding officer may also limit the

frequency or extent of discovery where the party seeking discovery “has had ample opportunity to obtain the information by discovery in the action” or where “the burden or expense of the proposed discovery outweighs its likely benefit.” 46 C.F.R. § 502.141(e)(2)(ii).

ARGUMENT

A. The Deposition Notices Are Inappropriate, Untimely, and Should Be Quashed.

Section 502.143(b)(1) of the FMC’s Rules requires that “a party who wants to depose a person by oral questions must give reasonable written notice to every other party.” While § 502.143(b)(1) does not specify the number of days required for written notice to be “reasonable,” the Initial Order specifically directs that “compliance with the date set for completion of discovery requires that the parties serve discovery requests sufficiently in advance of the discovery cutoff so that all responses and objections are due on or before that date.”

The inquiry as to whether notice is reasonable is case-specific and fact-intensive. *See Peterson v. Union Pacific R. Co.*, 2007 WL 2701268, at *2 (C.D. Ill. Aug. 23, 2007). Federal jurisprudence is unambiguous that at least ten to fourteen days constitutes reasonable notice of a deposition. *See Holloway v. 3M Co.*, 2019 WL 7172600, at *24 (C.D. Cal. Oct. 31, 2019); *Gulf Prod. Co. v. Hoover Oilfield Supply, Inc.*, 2011 WL 1791286, at *2 (E.D. La. May 9, 2011); *In re Sulfuric Acid Antitrust Litigation*, 231 F.R.D. 320, 327 (N.D. Ill. 2005); *Paige v. Consumer Programs, Inc.*, 248 F.R.D. 272, 275 (C.D. Cal. 2008); *Nieman v. Grange Mut. Ins. Co.*, 2012 WL 5471949, at *2 (C.D. Ill. Nov. 9, 2012). Here, Respondents transmitted the Notices to the counsel of Complainant on Friday, June 5, 2026 at 12:16 PM Eastern (18:16 CEST), scheduling depositions to the following Thursday June 11 and Friday 12, 2026, only four and five business days later. The effective notice was even shorter: Counsel of Complainant forwarded the Notices to Cool Living after close of business on Saturday, June 6, 2026, and Cool Living’s representatives first viewed them on Monday, June 8, 2026, leaving two and three business days to investigate the demand, identify and prepare witnesses, designate (if treated as organizational), travel as necessary, and participate. This is unreasonable as a matter of law.

The Notices are also defective on their face for failing to describe with reasonable particularity the matters for examination. Section 502.143(b)(6) provides that when a party names “a public or private corporation” or other entity as a deponent, the party “must describe with reasonable particularity the matters for examination.” The Notices identify the deponents as “officer, director, owner, and/or managing representative” of Cool Living. They list zero matters for

examination. Cool Living cannot review the topics, cannot designate the appropriate witness, and cannot prepare a witness to bind the corporation on undisclosed topics. The Notices also fail to make clear whether the testimony sought is from the individual in personal capacity or in an organizational capacity binding Cool Living. Respondents' June 8 email contends that during the May 29 meet and confer call on H&K motion to withdraw, Respondents communicated an "intent to take deposition discovery from Cool Living" (Ex. D). Intent is not particularity. The defect alone is sufficient grounds to quash. Courts have prevented this type of deposition ambush. *See Nieman, 2012 WL 5471949, at *2*. The Notices' place is conditioned. Both Notices state the deposition is "By remote videoconference, subject to agreement of the parties or order of the Presiding Officer under 46 C.F.R. § 502.143(b)(4)." Section 502.143(b)(4) provides only two paths to a remote deposition: stipulation by the parties or order of the Presiding Officer on motion. Neither has occurred. Cool Living has not stipulated. Respondents have not filed a motion under § 502.143(b)(4). The format the Notices specify is conditional on prerequisites that do not exist. The Notices cannot operate as notices of a remote videoconference deposition. Both deponents are foreign nationals residing outside the United States. Section 502.142(b) requires that depositions of persons located in a foreign country be taken under an applicable treaty or convention, pursuant to a letter of request, on notice before a person authorized to administer oaths in the place of examination, or before a person authorized by the Commission or Presiding Officer. Respondents have pursued none of these mechanisms nor have they suggested any less intrusive methods such as to submit declarations and affidavits in lieu of rushed late depositions. The Notices do not address the foreign-deponent issue. Ms. Farkas resides in Spain (UTC+2 in June) and Mr. Hopkins resides in Finland (UTC+3 in June), six and seven hours ahead of Eastern Daylight Time, respectively. The proposed 9:30 AM Eastern start time therefore corresponds to 3:30 PM local time for Ms. Farkas and 4:30 PM local time for Mr. Hopkins, with a seven-hour deposition running until approximately 10:30 PM and 11:30 PM local time, respectively, deep into the local evening and night hours. The proposed and noticed times would be unreasonable, oppressive and cause undue burden to the deposed witnesses. Respondents' June 8 email proposing a Saturday June 13, 2026 deposition for Mr. Hopkins on the discovery cutoff itself compounds the burden by imposing a non-business day on a foreign national in international travel. Respondents have not articulated any necessity for these depositions in this proceeding. H&K's written correspondence (Ex. C) also states that during the May 29 call "to any depositions

in the FMC action, Mr. Nolan advised that would be a matter for substituted counsel or Cool Living to address." Respondents' attempt to convert a withdrawal meet-and-confer into a deposition notice fails. An expression of interest to depose Cool Living, without a list of topics, without proposed dates, and without consultation with the party deponents, does not satisfy § 502.71. The factual record is fully developed in documentary evidence, including Respondents' Verified Answer, Respondents' interrogatory responses, contemporaneous email communications between the parties, Respondents' general manager's January 15, 2025 written admission, and sworn affidavits of Respondents' officer filed in the parallel New York State Supreme Court proceeding (Index No. 655504/2025). Neither the Notices, nor the May 29 call between H&K and Respondents' counsel, nor Respondents' June 8, 2026 email articulates any basis on which deposition discovery is necessary to develop Respondents' defense beyond the existing documentary record. Accordingly, Respondents have not complied with the Initial Order, the procedural requirements of § 502.143, the requirements of § 502.142(b), or the requirement of describing with reasonable particularity the matters for examination § 502.143(b)(6), and their deposition Notices should be quashed.

B. A Protective Order Should Be Issued Preventing the Notices From Going Forward at a Later Date.

For good cause, a Protective Order may be issued to protect a party "from annoyance, embarrassment, oppression, or undue burden or expense." 46 C.F.R. § 502.141(j). Good cause exists here to bar the rescheduling of the noticed depositions for another date. Moving forward with the depositions, with the close of all discovery upon the parties, would place undue burden on Cool Living, as it would not have sufficient time to identify, designate (if organizational), and prepare appropriate witnesses, particularly given the absence of any specified topics, the conditional remote format, the six hour time difference, the foreign-national status of the deponents, and the international travel of Cool Living's representative. The Notices presume that both Tony Hopkins and Anna Farkas will themselves serve as the deponents. Yet the Notices are silent as to whether the deposition is sought in an individual or organizational capacity, and silent as to topics, leaving Cool Living no procedural ability to designate a corporate representative or prepare for organizational examination as the Commission's rules require. This is the hornbook

understanding: “the responding party must assess the topics and then designate the person(s) appropriate to address and bind the corporation.” *See McDaniel v. Loyola Univ. Med. Ctr., No. 13 CV 6500, 2016 WL 11734767, at *2 (N.D. Ill. Sept. 28, 2016)*. In the further alternative, and as a good-faith proposition to avoid oppression and undue burden, Cool Living proposes that any testimony the Commission may require from these witnesses be provided by declaration or affidavit submitted with the parties’ briefs and appendices, in lieu of oral deposition. Parties in proceedings before the Commission have proceeded in precisely this manner. *See Way Interglobal Network, LLC v. Shenzhen Unifelix SCM Limited, Docket No. 22-28 (Complainant’s Notice of Deposition Designations, Aug. 24, 2023) (parties mutually agreed that declarations and affidavits would be submitted with their respective briefs and appendices in place of depositions)*. Given that Respondents had ample opportunity to notice timely depositions and did not, and that the factual record is already substantially developed in the documentary evidence, declarations or affidavits would supply any testimony reasonably needed while avoiding the undue burden of a rushed, cross-border deposition at the very close of discovery. Cool Living offers this alternative without conceding that any deposition testimony is necessary or that the Notices are proper. The respondents have not made any announcements during the entire proceeding of its claimed intent to depose Cool Living or to the topics and matters it contends necessitates depositions of Cool Living with this sudden ambush deposition attempt. It is entirely unreasonable and made in bad faith. Furthermore, if the respondents’ notices seek the testimony in their individual capacity only based on their respective knowledge the depositions cannot produce binding corporate admissions or establish Cool Living’s positions on contested issues. The benefit is limited to whatever personal observations the deponents may recall about events already documented in the parties’ written exchanges, contemporaneous emails, interrogatory responses, and pleadings. The burden of 14 hours of foreign-national witness time during the very close of discovery and the representation transition is wildly disproportionate to that limited benefit in this matter under § 502.141(e)(2)(ii)(C). The oppression is further compounded by present counsel of record’s misrepresentations in its Motion to Withdraw as Counsel, which inaccurately state that Cool Living intended to pursue depositions at the very end of discovery, as if the parties had reached a mutual agreement on depositions or further extending the proceeding. That representation is incorrect. Cool Living has made no such commitment, and no evidence exists of communications regarding depositions other than Respondents’ expression of interest in

deposing Tony Hopkins made specifically during a single May 29 call. Cool Living has consistently sought to proceed in this matter without delay. If the untimely depositions were ordered to go forward as noticed, the depositions would be individual capacity depositions only, which cannot be used to establish Cool Living's corporate positions or admissions on any contested issues. This defeats the asserted purpose of the depositions. The burden of two seven-hour ambush depositions at the very end of discovery, totaling 14 hours of foreign-national witness time, outweighs any benefit Respondents contend they will obtain. Extending discovery further would impose undue expense on Cool Living and benefit Respondents, who have stalled the proceeding throughout. Respondents should not be rewarded for that conduct here.

C. Respondents' Self-Induced Urgency and Manufactured Prejudice Should Be Carefully Scrutinized in the Context of This Application.

Respondents served defective Notices at the very end of discovery, one business day after Cool Living's counsel of record filed a Motion to Withdraw. Counsel must have known there is no reasonable prospect of preparing foreign-national witnesses and having two depositions held in the schedule that remains. At minimum, that fact was made clear during the Monday June 8 meet and confer process, and Respondents refused to withdraw the Notices even after being notified that Tony Hopkins and Anna Farkas were not able to see the notices until that very day.

Respondents intentionally sent the Notices on Friday June 5, 2026, in bad faith and at the last minute, knowing that the proffered witnesses could not be prepared this suddenly, and Cool Living was in the midst of a representation transition, that there was inadequate time even to investigate, and the notices lack any description of topics under § 502.143(b)(6). There is no excuse for sitting on their hands with this until the end of all discovery. Respondents knew of H&K's intended withdrawal by May 29, 2026. Respondents waited until one business day after H&K filed its withdrawal motion to serve the Notices. The Notices were calibrated to land at the precise moment of Cool Living's maximum representation vulnerability. The Presiding Officer's June 8, 2026 Order on Motion to Withdraw stated that withdrawal could not be granted without material adverse effect through June 13 because of Respondents' stated intent to depose. (Ex. D.) Respondents' eleventh-hour Notices are oppressive and created the very procedural posture that constrained H&K's withdrawal and the very prejudice Respondents now invoke as a rationale to

compel attendance. The prejudice and urgency is self-induced. It is this kind of tactics that undermines the fairness of the process and violates principles of procedural fairness and warrants consequences. The Respondents should be also reminded that the scheduling order is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril. *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). See *Marine Transport Logistics, Inc. v. CMA CGM, S.A.*, Docket No. 22-23, at 5 (Order on Respondent's Motion for Letter of Request and Extension of Time) (ALJ Mar. 28, 2023). Respondents are trying to conduct an ambush deposition of the noticed witnesses and with these notices they would only be bound by in their individual capacity which will have treated the scheduling order cavalierly with these belated Notices, expecting Cool Living would be forced to seek an extension of time. Instead, Cool Living files this Motion as soon as practicable to bring this issue to the attention of the Presiding Officer before the noticed deposition dates of June 11, 12, and (per Respondents' June 8 email) June 13, 2026.

STATEMENT REGARDING IMPACT ON DEADLINES

Pursuant to the Presiding Officer's Scheduling Order, which directs that any motion that could impact other deadlines address that impact, Cool Living states as follows. This Motion concerns deposition Notices served within the discovery period that closes June 13, 2026. Cool Living does not seek to stay any deadline and does not seek to extend the discovery deadline. The Notices should be quashed, or in the alternative that a protective order issue, and that no extension of the discovery deadline is warranted at the very end of discovery. Any testimony required from these witnesses should be provided by declaration or affidavit submitted with the parties' briefs and appendices in lieu of oral deposition, the need for any extension being attributable solely to Respondents' delay in noticing these depositions and should not be awarded for their oppressive conduct that would cause the complainant undue burden and expense.

CONCLUSION

Based on the foregoing reasons, Cool Living respectfully requests that its Motion to Quash be granted, or in the alternative that the Presiding Officer grant its Motion for a Protective Order under 46 C.F.R. § 502.141(j) forbidding the noticed depositions and any re-notice of depositions of either witness in this proceeding; or, in the further alternative, that the Presiding Officer order that any testimony required from these witnesses be provided by declaration or affidavit submitted with the parties' briefs and appendices in lieu of oral deposition; and award Cool Living its costs and fees incurred in opposing and addressing the Notices.

Dated: June 10, 2026

Respectfully submitted,

/s/ Tony Hopkins

Tony Hopkins

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CERTIFICATE OF SERVICE

Pursuant to 46 C.F.R. § 502.117, I hereby certify that I have this day served the foregoing document upon all parties of record by e-mailing a copy to each such person.

This 10th day of June 2026.

/s/ Tony Hopkins

Tony Hopkins

Representative of Complainant Cool Living LLC